No. 24-1949

IN THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

JANE ELIZABETH ROBERTS, et al.,

Plaintiffs-Appellants,

v.

GOVERNOR JAY INSLEE, et al.,

Defendant-Appellees.

On Appeal from the United States District Court for the
Eastern District of Washington at Spokane
No. 2:23-cv-00295-TOR
The Honorable Thomas O. Rice

DEFENDANT-APPELLEE GOVERNOR JAY INSLEE'S ANSWERING BRIEF

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I. INTRODUCTION

Facing an unprecedented surge in COVID-19 cases, hospitalizations, and deaths, Washington State Governor Jay Inslee adopted Proclamation 21-14 (together with subsequent iterations, the "Proclamation"), which required healthcare workers and most state employees to become vaccinated against COVID-19 (or obtain an exemption and accommodation) by October 18, 2021. Appellants, former at-will employees of Shriners Hospitals for Children (Employees), declined to receive a COVID-19 vaccine, were discharged, and sued their former employer and Governor Inslee. While the Employees do not dispute that the Proclamation could legally require an FDA-approved vaccine, they contend that the only vaccines available to them were "EUA/PREP Act investigational drugs."[1] The district court properly granted Governor Inslee's motion to dismiss for failure to state a claim.

First, if the Court accepts the Employees' legal theory—that the COVID-19 vaccines were "EUA/PREP Act" drugs—it would render Governor Inslee immune from suit under the Public Readiness and Emergency Preparedness Act (PREP) Act. As this Court recently held, the PREP Act's broad immunity provision extends to state policies regarding the administration of such "PREP Act drugs" and so would preclude the Employees' claims here.

[1] Op. Br. at 18.

Second, the Employees cannot overcome Governor Inslee's presumption of qualified immunity because they cannot identify any right that the Proclamation violated, let alone a right that was "clearly established" and "beyond debate" when the Proclamation took effect. The dearth of authority supporting the Employees' claims and the abundant precedent rejecting indistinguishable challenges to COVID-19 vaccine mandates generally, and to the Proclamation specifically, confirm the Employees cannot meet this burden.

Third, the Employees cannot satisfy the elements of any of their claims. They identify: no statutory right that is enforceable under § 1983; no "investigational drug" to support their "investigational drug use" claim; no suspect class to support their equal protection claim; no fundamental or procedural right to support their due process claim; no spending legislation to support their Spending Clause claim; no governmental benefit to support their "unconstitutional conditions" claim; and no "serious physical injury" to support their PREP Act claim.

Largely unsupported by citations to legal authority or their own allegations, the Employees' Opening Brief does nothing to undermine these bases for dismissal. Addressing only six of their ten causes of action—and abandoning the rest—the Employees ignore the district court's reasoning, their claims' required elements, and extensive authority confirming they cannot satisfy those elements here. The Court should affirm dismissal of each claim against Governor Inslee.

II. JURISDICTIONAL STATEMENT

Governor Inslee agrees that the district court's judgment is final and that this Court has appellate jurisdiction under 28 U.S.C. § 1291. *See* Op. Br. at 5. However, the Employees' statement of federal subject matter jurisdiction is incomplete. The Complaint asserted ten claims: six federal claims under 42 U.S.C. § 1983, an implied right of action claim under 21 U.S.C. § 360bbb-3(e), and three state law claims. The six § 1983 claims and the implied right of action claim under 21 U.S.C. § 360bbb-3(e) vested the district court with original, federal question jurisdiction pursuant to 28 U.S.C. § 1331. This enabled the district court to exercise supplemental jurisdiction over the remaining state law claims pursuant to 28 U.S.C. § 1367(a).

III. STATEMENT OF ISSUES PRESENTED FOR REVIEW

1. Is Governor Inslee entitled to immunity from the Employees' state and federal claims under the PREP Act where the Employees' allegations relate to the administration of medical countermeasures during a declared public health emergency?

2. Is Governor Inslee entitled to immunity from the Employees' § 1983 claims in his official capacity where the Employees seek only monetary damages, not prospective relief?

3. Is Governor Inslee entitled to qualified immunity from the Employees' § 1983 claims in his individual capacity where the Employees fail to identify any clearly established rights that the Proclamation violated?

4. Did the Employees fail to plead a claim against Governor Inslee for breach of contract where he was not a party to the purported contract at issue?

5. Did the Employees fail to plead a claim against Governor Inslee for "employment torts" where the Complaint failed to specify the nature of these "tort" claims and it is uncontroverted that Governor Inslee was not their employer?

6. Did the Employees fail to plead a claim against Governor Inslee for outrage where the issuance of the Proclamation was a reasoned exercise of the State's established police powers?

7. Did the Employees fail to plead a claim against Governor Inslee for implied right of action under the Emergency Use Authorization Act, 21 U.S.C. § 360bbb-3 (the "EUA Statute") where the Employees' allegations establish no violation of the EUA Statute and the Complaint's allegations relate to only Shriners?

8. Did the district court act within its discretion by denying the Employees' leave to amend their Complaint where the Employees have failed to identify any additional allegations that would overcome Governor Inslee's entitlement to qualified immunity or satisfy any element of their claims?

IV. STATEMENT OF THE CASE

While review of dismissal for failure to state a claim pursuant to Fed.R.Civ.P. 12(b)(6) is typically limited to the contents of the complaint, both the Employees and Governor Inslee rely upon judicially noticeable facts contained in reports of governmental public health authorities, including from the U.S. Food and Drug Administration (FDA), the U.S. Centers for Disease Control and Prevention (CDC), and the Washington State Department of Health (DOH). Governor Inslee respectfully requests that this Court take judicial notice of these materials, as the Parties asked the district court. ER-0283. *See, e.g.*, Op. Br. at 6–7, 21, 48; ER-0215 (Employees' assertion the court may take judicial notice of "records and reports of administrative bodies, . . . and public records and government documents available from reliable sources on the Internet.") (citations omitted); *see also King v. County of Los Angeles*, 885 F.3d 548, 555 (9th Cir. 2018) (courts may take judicial notice of undisputed and publicly available information displayed on government websites).

A. Factual Background

1. The COVID-19 Pandemic

The COVID-19 pandemic was the "deadliest" in "American history." *Florida v. Dep't of Health & Hum. Servs.*, 19 F.4th 1271, 1275 (11th Cir. 2021). The highly contagious respiratory virus has caused over 1.1 million deaths in the United States

and over 16,000 deaths in Washington State.[2] In response to this public health emergency, "[g]overnments at all levels instituted restrictions to curb the transmission of the virus." *Slidewaters LLC v. Wash. State Dep't of Labor & Indus.*, 4 F.4th 747, 752 (9th Cir. 2021).

In Washington State, Governor Jay Inslee proclaimed a state of emergency on February 29, 2020. *Id*. at 753. The Governor's "emergency proclamation unlock[ed]" his "broad" emergency powers in "response to a disaster that threatens 'life, health, property, or the public peace.'" *Colvin v. Inslee*, 467 P.3d 953, 962 (Wash. 2020) (quoting Wash. Rev. Code § 43.06.010(12)).

Between December 2020 and February 2021, the FDA issued Emergency Use Authorizations (EUAs) for three COVID-19 vaccines developed by Pfizer, Moderna, and Johnson & Johnson. *Children's Health Defense v. FDA*, No. 23-50167, 2024 WL 244938, at *1 (5th Cir. Jan. 23, 2024) (per curiam) (citing 86 Fed. Reg. 5200, 5204, 5214 (Jan. 19, 2021)); *Church v. Biden*, 573 F. Supp. 3d 118, 126 (D.D.C. 2021)).[3] FDA gave full approval to Pfizer's vaccine—previously referred

[2] CDC, *COVID Data Tracker, Trends in the United States COVID-19 Deaths, Emergency Department (ED) Visits, and Test Positivity by Geographic Area*, https://covid.cdc.gov/covid-data-tracker/#trends_totaldeaths_select_53 (last visited on Aug. 8, 2024).

[3] *See also* FDA, *Moderna COVID-19 Vaccine*, https://www.fda.gov/vaccines-blood-biologics/coronavirus-covid-19-cber-regulated-biologics/moderna-covid-19-vaccine (last visited Aug.. 8, 2024); FDA, *Pfizer-BioNTech COVID-19 Vaccine*, https://www.fda.gov/vaccines-blood-biologics/coronavirus-covid-19-cber-regulated-biologics/pfizer-biontech-covid-19-vaccine (last visited Aug.. 8, 2024);

to as "BioNTech" and subsequently to be marketed as "Comirnaty"—for people 16 and older on August 23, 2021, and to Moderna's vaccine for people 18 and older on January 31, 2022. *We The Patriots USA, Inc. v. Hochul*, 17 F.4th 266, 283, *opinion clarified*, 17 F. 4th 368 (2d Cir. 2021); *Brox v. Woods Hole, Martha's Vineyard & Nantucket Steamship Auth.*, No. CV 22-10242-RGS, 2023 WL 8545141, at *2 (D. Mass. Dec. 11, 2023), *appeal docketed*, No. 24-1063 (1st Cir.). The CDC considers the vaccines to be safe and effective in reducing the risk of severe illness or death due to COVID-19.[4]

When the FDA approved the Pfizer "Comirnaty" vaccine, it also reissued the EUA for BioNTech, because "there [wa]s not sufficient [Comirnaty] vaccine available for distribution to this population in its entirety at the time of reissuance of this EUA." ER-0577. The FDA noted that Comirnaty and BioNTech share "the same formulation . . . and . . . can be used interchangeably to provide the vaccination series without presenting any safety or effectiveness concerns." ER-0567 n.8. Accordingly, while there are "legal distinctions" between the labels applied to these products, the

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FDA, *Janssen COVID-19 Vaccine*, https://www.fda.gov/vaccines-blood-biologics/coronavirus-covid-19-cber-regulated-biologics/janssen-covid-19-vaccine (last visited Aug.. 8, 2024).

[4] CDC, *Overview of COVID-19 Vaccines* (Updated May 23, 2023),https://archive.cdc.gov/#/details?url=https://www.cdc.gov/coronavirus/2019-ncov/vaccines/different-vaccines/overview-COVID-19-vaccines.html .

FDA "exercise[ed] its enforcement discretion" not to enforce them. ER-0399; SER-009.

2. Proclamation 21-14

Summer 2021 saw the emergence of the "[D]elta variant"—a new, highly infectious COVID-19 strain. *See Does 1-6 v. Mills*, 16 F.4th 20, 26–27 (1st Cir. 2021). Twice as infectious as earlier variants, *id*., Delta spread like wildfire, causing Washington's weekly COVID-19 hospitalizations to more than quadruple from July 3 to September 4, 2021.[5] The COVID-19 vaccines continued to prove highly effective against the Delta variant: According to a September 2021 CDC report (when Delta was dominant), unvaccinated people were five times more likely to contract, ten times more likely to be hospitalized with, and ten times more likely to die from COVID-19 than those who were fully vaccinated.[6] And as the CDC explained, "[v]accines continue to reduce a person's risk of contracting the virus that causes COVID-19, including this variant."[7] Unfortunately, the Delta surge coincided

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[5] CDC, COVID-NET Dashboard, (updated May 28, 2024), https://www.cdc.gov/coronavirus/2019-ncov/covidnetdashboard/de/powerbi/dashboard.html.

[6] CDC, *Monitoring Incidence of COVID-19 Cases, Hospitalizations, and Deaths, by Vaccination Status – 13 U.S. Jurisdictions, April 4-July 17, 2021* (MMWR) (Sept. 17, 2021), https://www.cdc.gov/mmwr/volumes/70/wr/mm7037e1.htm?s_cid=mm7037e1_w.

[7] CDC, *Benefits of Getting a COVID-19 Vaccine* (updated Aug. 16, 2021), https://web.archive.org/web/20211018080349/https://www.cdc.gov/coronavirus/2019-ncov/vaccines/vaccine-benefits.html.

with a steady decline in vaccination rates in Washington State,[8] despite the "consensus of reliable public health authorities that the COVID-19 vaccines prevents the spread of the virus." *Does 1-2 v. Hochul*, 632 F. Supp. 3d 120, 127 (E.D.N.Y. 2022), *appeal docketed*, No. 22-2858 (2d Cir.)).

On August 9, 2021, Governor Inslee issued Proclamation 21-14, prohibiting healthcare providers, most state employees, and (later) educators from working after October 18, 2021, without being vaccinated against COVID-19.[9] When it took effect, the Proclamation applied to at least 681,000 workers across those three covered sectors. *Wise v. Inslee*, No. 2:21-CV-0288-TOR, 2021 WL 4951571, at *1 (E.D. Wash. Oct. 25, 2021). The Proclamation required covered employers to evaluate requests for medical and religious exemptions and provide reasonable accommodations consistent with state and federal antidiscrimination statutes.[10]

Independent of the Proclamation, the federal government issued its own COVID-19 vaccination requirement for most U.S. healthcare workers. In November 2021, the U.S. Department of Health and Human Services (HHS) announced that, as a condition of federal Medicare and Medicaid funding, healthcare "facilities must

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[8] DOH, *COVID-19 Vaccination Data*, https://doh.wa.gov/data-statistical-reports/health-behaviors/immunization/covid-19-vaccination-data (last visited on Aug. 8, 2024).

[9] Office of Wash. Governor Jay Inslee, Procl. 21-14.1 at 4–5 (Aug. 20, 2021), https://governor.wa.gov/sites/default/files/proclamations/21-14.1%20-%20COVID-19%20Vax%20Washington%20Amendment.pdf.

[10] Procl. at 5–6.

ensure that their staff—unless exempt for medical or religious reasons—are vaccinated against COVID-19." *Biden v. Missouri*, 595 U.S. 87, 89 (2022) (citing Medicare and Medicaid Programs: Omnibus COVID-19 Health Care Staff Vaccination, 86 Fed. Reg. 61,555 (Nov. 5, 2021)). HHS found that "vaccination of healthcare workers against COVID-19 was 'necessary for the health and safety of individuals to whom care and services are furnished.'" *Id*. at 91 (quoting 86 Fed. Reg. at 61,561). This finding was based on "data showing that the COVID-19 virus can spread rapidly among healthcare workers and from them to patients, and that such spread is more likely when healthcare workers are unvaccinated." *Id*. HHS concluded that "unvaccinated [healthcare staff] . . . pose a serious threat to the health and safety of patients." *Id*. The Supreme Court held that the HHS Secretary did not exceed his authority in adopting the vaccination rule, that it was not arbitrary and capricious, and that various other challenges to it failed. *Id*. at 95–97.

3. The Employees' Refusal to be Vaccinated

The Employees allege they were "previously [] employee[s] of Shriners in Washington," ER-0460–61 (Compl. ¶¶ 18.1–18.12), who were "penalized [] for refusing" the COVID-19 vaccine, ER-0527 (Compl. ¶ 276). The Complaint provides no details regarding the reason for this refusal, or whether the Employees sought an exemption.

B. Procedural History

1. The Employees' Complaint

On October 13, 2023, the Employees filed this lawsuit against Shriners, several Shriners executives, and Governor Inslee (in his official and individual capacities). ER-461–63. The Employees alleged that Shriners and Governor Inslee unlawfully required healthcare workers to take the COVID-19 vaccine as a condition of their continued employment, invoking an array of unsupported legal theories. Specifically, the Employees alleged in ten causes of action that Defendants-Appellees: (1) subjected them to medical "research" by requiring the use of "investigational" medical products in purported violation of the EUA Statute, 45 C.F.R. § 46.116(b)(8), the Belmont Report, the "Federal Wide Assurance" and Article VII of the International Covenant on Civil and Political Rights (ICCPR); (2) violated the Employees' substantive and procedural due process rights; (3) violated the Equal Protection Clause; (4) deprived the Employees of their rights under the Spending Clause Doctrine; (5) violated the unconstitutional conditions doctrine; (6) violated the Public Readiness and Emergency Preparedness Act, 42 U.S.C. § 247d-6d et seq. (the PREP Act"); (7) breached the CDC COVID-19 Vaccination Program Provider Agreement; (8) committed Washington State common law employment torts; (9) committed the tort of outrage; and (10) violated the EUA Statute, which

the Employees say creates an implied right of action. ER-0540–56. The Employees sought compensatory, general, and punitive damages. *Id*. at 556–57.

2. The District Court's Order Dismissing All Claims

Governor Inslee and Shriners each filed Rule 12(b)(6) motions to dismiss the Employees' claims. ER-0279–328; ER-0400–54. In opposition to those motions, the Employees "agree[d] that Governor Inslee cannot be sued under § 1983 in his official capacity," ER-0211, and failed to even attempt to defend their claims for outrage and unspecified "employment torts." ER-0024.

Before the motions to dismiss were fully adjudicated, this Court issued its opinion in *Maney v. Brown*, 91 F.4th 1296 (9th Cir. 2024), holding that the PREP Act immunized Oregon's governor from claims related to a statewide policy concerning the administration of COVID vaccines. Governor Inslee cited *Maney* in his reply brief as an additional authority supporting dismissal. ER-0186–88.[11]

The district court dismissed the six § 1983 claims against Governor Inslee in his official capacity because "an official acting within his official capacity is. . . not a 'person' within the meaning of Section 1983" and the Employees sought monetary damages rather than prospective injunctive relief. ER-0010–11. The district court

[11] Before the district court issued an order on Governor Inslee's Motion to Dismiss, on March 6, 2024, the Employees filed a Motion for Leave to File Amended Complaint, which the district court denied. ER-0055, ER-0004. However, because the Employees do not address that motion in their Opening Brief, Governor Inslee does not summarize it here or address the district court's ruling.

also dismissed the § 1983 claims against Governor Inslee in his individual capacity because the Employees "ha[d] not established that the Proclamation violated any clearly established constitutional or statutory right," and thus Governor Inslee was entitled to qualified immunity on all claims raised under § 1983. ER-0011, 0022. The district court dismissed the Employees' remaining claims on the merits. ER-0023–26. Concluding that any further amendment to the Complaint would be futile, the district court dismissed all claims against Governor Inslee with prejudice. ER-0026.

V. STANDARD OF REVIEW

This Court reviews de novo the grant of a motion to dismiss and "may affirm on any ground supported by the record." *Saloojas, Inc. v. Aetna Health of Cal., Inc.*, 80 F.4th 1011, 1014 (9th Cir. 2023). The district court's decision on whether to grant absolute or qualified immunity is also reviewed de novo. *Garmon v. County of Los Angeles*, 828 F.3d 837, 842 (9th Cir. 2016) (absolute immunity); *Benavidez v. County of San Diego*, 993 F.3d 1134, 1141 (9th Cir. 2021) (qualified immunity). The court's decision to grant leave to amend, in contrast, is reviewed for an abuse of discretion. *Nat'l Audubon Soc'y, Inc. v. Davis*, 307 F.3d 835, 853 (9th Cir.), *amended by* 312 F.3d 416 (9th Cir. 2002); *see also Metrophones Telecomms., Inc., v. Global Crossing Telecomms., Inc.*, 423 F.3d 1056, 1063 (9th Cir. 2005).

A "motion to dismiss under Rule 12(b)(6) of the Federal Rules of Civil Procedure is analyzed using the plausibility pleading standards of Rule 8(a), *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 [] (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 [] (2009)." *In re Finjan Holdings, Inc.*, 58 F.4th 1048, 1056–57 (9th Cir. 2023). Under *Twombly* and *Iqbal*, "[t]o survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." *Iqbal*, 556 U.S. at 678 (cleaned up). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id*. Whether a complaint states a claim for relief "requires the reviewing court to draw on its judicial experience and common sense." *Id*. at 679.

Further, while the court must accept as true all well-pleaded factual allegations in the pleading, it is not "required to accept as true allegations that are merely conclusory, unwarranted deductions of fact, or unreasonable inferences." *Sprewell v. Golden State Warriors*, 266 F.3d 979, 988 (9th Cir. 2001). Dismissal may be based on either the "lack of a cognizable legal theory or absence of sufficient facts alleged under a cognizable legal theory." *Conservation Force v. Salazar*, 646 F.3d 1240, 1242 (9th Cir. 2011).

VI. SUMMARY OF ARGUMENT

This Court should affirm the dismissal of the Employees' claims against Governor Inslee for four reasons. First, the Employees' assertion that the COVID-19 vaccine was a "PREP Act" investigational drug, while false, dooms their lawsuit because Governor Inslee is entitled under the PREP Act to immunity from all federal and state law claims.

Second, the Employees concede that because they seek only damages, not prospective injunctive relief, Governor Inslee is not subject to suit under 42 U.S.C. § 1983 in his official capacity. And Governor Inslee is entitled to qualified immunity in his individual capacity from the Employees' federal claims because they have not alleged the violation of any enforceable right, let alone one that was "clearly established" when the Proclamation took effect.

Third, the Employees identify no right that is enforceable under § 1983, and cannot satisfy the elements of any of their ten claims.

Fourth, the Employees abandon their remaining four causes of action: breach of contract, "employment torts," outrage, and implied right of action under the EUA statute. The Court should affirm dismissal of these claims.

VII. ARGUMENT

A. This Court Should Affirm Dismissal on the Basis of PREP Act Immunity

The Employees do not dispute that the FDA's approval of the COVID-19 vaccine precludes their claims in this case. ER-506 (Compl. ¶ 190) ("Plaintiffs make no assertions regarding whether it is lawful . . . to mandate taking a ***licensed*** vaccine." (emphasis in original)) They contend only that the district court erred in dismissing their claims because the COVID-19 vaccines were, in fact, "EUA/PREP Act investigational drugs." Op. Br. at 18–19.

This assertion dooms their claims, both because their own allegations confirm its falsity—the FDA indisputably approved the Pfizer vaccine before the Employees were required to be vaccinated, *see infra* subsection VII.B.3.a.iii—and because the use of such "EUA/PREP Act . . . drugs" would entitle Governor Inslee to immunity under the PREP Act.

The PREP Act enables the Secretary of Health and Human Services to authorize certain "covered countermeasures"—such as an EUA drug—after "mak[ing] a determination that disease or other health condition or other threat to health constitutes a public health emergency, or . . . future . . . emergency." 42 U.S.C. § 247d-6d(b)(1), (i)(1). And it "provides immunity from federal and state law claims relating to the administration of certain medical countermeasures during a declared public health emergency." *Hampton v. California*, 83 F.4th 754, 761 (9th Cir. 2023);

42 U.S.C. § 247d-6d(a)(1) (providing for "immun[ity] from suit and liability under Federal and State law" in connection with "use by an individual of a covered countermeasure.").

This Court recently held that PREP Act immunity applies broadly to "administrative activities other than the physical act of directly injecting a particular person with a vaccine," including "policy-level" functions. *Maney*, 91 F.4th at 1301. Accordingly, the PREP Act "extend[s] immunity to persons who make policy-level decisions regarding administration or use of covered countermeasures and do not directly administer countermeasures to particular individuals." *Id*.

In *Maney*, the Court applied PREP Act immunity to an Oregon policy that prioritized vaccine access for prison guards over inmates. *Id*. at 1297, 1303. The Court reasoned that "the Act provides that the scope of immunity . . . includes various activities with a causal relationship to the administration of a countermeasure beyond injecting someone with a vaccine," which "are multiple links removed in the chain of events from the ultimate injecting of an individual with a vaccine." *Id*. at 1300–01 (citing 42 U.S.C. § 247d-6d(a)(2)(B)). And the Court adopted the U.S. Health and Human Services (H.H.S.) Secretary's definition of "administration," which includes "activities and decisions directly relating to . . . management and operation of countermeasure programs." *Id*. (quoting 85 Fed. Reg. at 79197). The Court granted immunity to Oregon's governor, noting that "the Act

defines the term 'covered person,' . . . to include a 'program planner of such countermeasure,'" including "a state government, a person employed by a state government, [and] 'a person who supervised or administered a program with respect to the administration' of a countermeasure." *Id*. at 1301 (quoting 42 U.S.C. §§ 247d-6d(i)(2)(B)(iii), (i)(6)).[12] On that basis, the Court dismissed the plaintiffs' Eighth Amendment cruel and unusual punishment claim. *Id*. at 1303.

Like the state policy at issue in *Maney*, the Proclamation is a "policy-level" program that "directly relat[es] to . . . management and operation of [a] countermeasure program[]," and so comes within the PREP Act's immunity. *Id*. at 1301. That the Proclamation may be "multiple links removed in the chain of events from the ultimate injecting of an individual with a vaccine" is irrelevant; the PREP Act's "unambiguously . . . broad scope of immunity" reaches the Proclamation. *Id*. at 1301, 1303. And like Governor Brown, Governor Inslee is a "covered person" entitled to immunity. *Id*. at 1301.

Accordingly, the Employees' assertion that the Pfizer vaccine is an "EUA/PREP Act investigational drug," *see*, *e.g.*, Op. Br. at 18–19, 21, 26, would, if true, render Governor Inslee immune from each "Federal and State law . . . claim[]"

[12] *Maney* also noted that, consistent with this statutory text, the H.H.S. Secretary's declaration of medical emergency for COVID-19 defines "covered person" to include a "governmental program planner." *Id*. at *4, *5 (quoting 85 Fed. Reg. at 79195, 79197).

in this lawsuit. 42 U.S.C. § 247d-6d(a)(1). Although the district court did not reach the Governor's PREP Act immunity defense, the Court can and should affirm on this ground. *See Saloojas*, 80 F.4th at 1014.

B. The District Court Properly Dismissed the Employees' § 1983 Claims

Alternatively, the Court should affirm the district court's conclusion that Governor Inslee is immune from the Employees' § 1983 claims. To state a claim under § 1983, the Employees must show that Governor Inslee acted under color of law to deprive them of a right or privilege specifically enumerated under the United States Constitution or the laws of the United States. The district court correctly held that Governor Inslee is not subject to suit under § 1983 in either his official or individual capacity and that the Employees failed to identify any specific right that the Proclamation purportedly violated.[13]

1. The Employees do not dispute Governor Inslee's immunity in his official capacity

The Employees "agree that Governor Inslee cannot be sued under § 1983 in his official capacity." ER-0211. That is because state officials acting in their official capacity are not "persons" subject to suit under § 1983, unless they are sued for

[13] A government official may be sued in an official or individual capacity. *See Kentucky v. Graham*, 473 U.S. 159, 165 & n.10 (1985). "Personal capacity suits seek to impose personal liability upon a government official for actions he takes under color of law. Official-capacity suits, in contrast generally represent only another way of pleading an action against an entity of which an officer is an agent." *Id*. at 165 (citation and internal quotation marks omitted).

prospective injunctive relief. *Will v. Mich. Dep't of State Police*, 491 U.S. 58, 70–71 (1989).[14] Because the Employees seek only damages, not prospective injunctive relief, ER-0556–57 (Compl. ¶¶ 410–16), this Court should affirm dismissal of the Employees § 1983 claims against Governor Inslee in his official capacity.

2. Governor Inslee is entitled to qualified immunity in his individual capacity

Governor Inslee is entitled to qualified immunity from the Employees' § 1983 claims because the Employees fail to identify any right the Proclamation violated. As a government official sued in his individual capacity, Governor Inslee is entitled to qualified immunity "from liability for civil damages insofar as [his] conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Pearson v. Callahan*, 555 U.S. 223, 231 (2009).

To overcome the presumption of immunity, the Employees must show both that Governor Inslee violated a federal right and that the right was clearly established at the time of the challenged conduct. *Ashcroft v. al-Kidd*, 563 U.S. 731, 735 (2011). The lack of either is dispositive. *See Mitchell v. Forsyth*, 472 U.S. 511, 526 (1985). The Employees fail on both counts.

[14] Section 1983 establishes liability for "person[s]" who cause the "deprivation of any rights, privileges, or immunities secured by the Constitution and laws" of the United States. 42 U.S.C. § 1983.

First, as outlined below, the Employees cannot identify any federal right that the Proclamation violated, and so fail to establish even the first prong of this test. *See infra* subsection VII.B.3.

Second, the Employees cannot establish that any of their claimed rights were "clearly established" when the Proclamation took effect. *Ashcroft*, 563 U.S. at 735. This requires that "existing precedent must have placed the statutory or constitutional question beyond debate" such that "every 'reasonable official would [have understood] that what he is doing violates that right.'" *Id.* at 741 (citations omitted).

The Employees' Opening Brief makes no attempt to address this requirement; they do not and cannot identify any authority to suggest that any of their claimed rights were "beyond debate" when the Proclamation took effect. To the contrary, since the Supreme Court's 1905 decision in *Jacobson v. Massachusetts*—which upheld a criminal conviction for refusing to be vaccinated against smallpox, 197 U.S. 11 (1905)—"federal courts have uniformly held[] there is no fundamental right to refuse vaccination," *Children's Health Defense, Inc. v. Rutgers, the State Univ. of New Jersey*, 93 F.4th 66, 78 (3d Cir. 2024) (*CHDI*), *cert. denied*, No. 23-1222, 2024 WL 3089572 (June 24, 2024); *see also, e.g.*, *Kheriaty v. Regents of the Univ. of California*, No. 22-55001, 2022 WL 17175070, at *1 (9th Cir. Nov. 23, 2022) ("Kheriaty fails to offer any appropriate historical example to establish a

'fundamental right' to be free from a vaccine mandate at a workplace."); *Clark v. Jackson*, No. 22-5553, 2023 WL 2787325, at *6 (6th Cir. Apr. 5, 2023) ("[F]ederal courts have consistently held that vaccine mandates do not implicate a fundamental right").

Accordingly, courts have consistently rejected challenges to the constitutionality of the Proclamation and other COVID-19 vaccine mandates in operation at the same time as the Proclamation. *See, e.g.*, *Pilz v. Inslee*, No. 22-35508, 2023 WL 8866565, at *2 (9th Cir. Dec. 22, 2023); *Kheriaty*, 2022 WL 17175070, at *2; *CHDI*, 93 F.4th at 76; *Norris v. Stanley*, 73 F.4th 431, 438 (6th Cir. 2023); *Lukaszczyk v. Cook County*, 47 F.4th 587, 603 (7th Cir. 2022); *Clementine Co., LLC v. Adams*, 74 F.4th 77, 90 (2d Cir. 2023). The "clearly established law," therefore, held the Proclamation was legal.

As this Court recently explained, "even if one assumes *arguendo* that *Jacobson* is distinguishable and there is arguably some support for the right to refuse forced medication that Plaintiffs posit, Plaintiffs still fall short of carrying their burden" to overcome the presumption of qualified immunity. *Johnson v. Kotek*, No. 22-35624, 2024 WL 747022, at *3 (9th Cir. Feb. 23, 2024). Instead, "[a]t best, the validity of these vaccine mandates under the principles discussed in *Jacobson*, . . . and related cases is debatable." *Id.*

The undisputed facts make clear that the Employees can allege no violation of clearly established law. *See Foster v. City of Indio*, 908 F.3d 1204, 1210 (9th Cir. 2018). Governor Inslee is, therefore, entitled to qualified immunity on the Employees' § 1983 claims. *See Reichle v. Howards*, 566 U.S. 658, 664 (2012) (citing *Pearson*, 555 U.S. at 227 (courts may grant qualified immunity on the ground that a purported right was not "clearly established" by prior case law, without resolving the often more difficult question whether the purported right exists at all)).

3. The Employees fail to plead a single cause of action

Even if Governor Inslee were not entitled to a presumption of immunity, the Employees would still fail to allege the required elements of any of their § 1983 claims. Because, as outlined below, these claims fail on the merits, the Court should affirm their dismissal.

a. The District Court correctly dismissed the Employees' "investigational drug use" claim.

The district court properly dismissed the Employees' first cause of action for "investigational drug use," which alleges that the Proclamation's reliance on "EUA/PREP Act drugs" (as opposed to FDA authorized vaccines) amounted to forced medical "research." ER-0540–41(Compl. ¶¶ 315–25). This claim necessarily fails because (i) the only purported "rights" the Employees identify are unenforceable under § 1983, and are irrelevant because (ii) the Proclamation does

not constitute medical "research"; and (iii) the Pfizer vaccine is not an "investigational" drug.

i. The Employees identify no § 1983-enforceable right.

The Employees' "investigational drug use" claim fails because none of the authorities on which they rely is enforceable under § 1983. "Although federal statutes have the potential to create § 1983 enforceable rights, they do not do so as a matter of course." *Health and Hosp. Corp. of Marion Cnty. v. Talevski*, 599 U.S. 166, 183 (2023). Instead, to be enforceable under § 1983, a federal law must "unambiguously confer" a right on a class of intended beneficiaries, *Gonzaga Univ. v. Doe*, 536 U.S. 273, 283 (2002), which is a "demanding bar," *Talevski*, 599 U.S. at 180. The district court correctly held that the Employees' § 1983 claims fail to identify any enforceable federal rights purportedly violated by the Proclamation.

The Employees claim purported rights under five authorities: the EUA Statute, 45 C.F.R. § 46, the Belmont Report, the "Federal Wide Assurance," and the ICCPR. ER-0540–41(Compl. ¶¶ 317–24). But none of these sources applies or contains a private cause of action that is available against Governor Inslee in federal court.

The EUA Statute: The EUA Statute governs "emergency use" medications and requires the Secretary of the U.S. Department of Health and Human Services to "establish such conditions on an [emergency use] authorization . . . to ensure that

individuals to whom the [emergency use] product is administered are informed [ ] of the option to accept or refuse administration of the product, of the consequences, if any, of refusing administration of the product." 21 U.S.C. § 360bbb-3(e)(1)(A)(ii)(III).

As an initial matter, the EUA Statute does not meet the "demanding bar" of § 1983 enforceability, *Talevski*, 599 U.S. at 180, and this Court recently confirmed that the EUA Statute does not create a § 1983-enforceable right, *Standley ex rel. B.M.S. v. Nelms*, No. 22-35833, 2024 WL 1793667, at *3 (9th Cir. Apr. 25, 2024) (holding that "§ 1983 cause of action to enforce [21 U.S.C. § 360bbb-3] . . . fails as a matter of law.").

To the contrary, the EUA Statute is part of the Federal Food, Drug, and Cosmetic Act (FDCA), which expressly provides that "all proceedings to enforce that statute "shall be by and in the name of the United States." *Id.* (quoting 21 U.S.C. § 337(a)). Accordingly, the Employees' § 1983 claim is "foreclosed by express provision of the FDCA." *Id.* (cleaned up); *see also Kiss v. Best Buy Stores*, No. 3:22-cv-00281-SB, 2022 WL 17480936, at *8 (D. Or. Dec. 6, 2022), *aff'd sub. nom. Kiss v. Best Buy Stores, Ltd. P'ship*, No. 23-35004, 2023 WL 8621972 (9th Cir. Dec. 13, 2023) ("[C]ourts have consistently held that the Emergency Use Authorization Act provides no private right of action."); *Gonzaga*, 536 U.S. at 283 (private right of

action cases "should guide the determination whether a statute confers rights enforceable under § 1983.").

Even putting aside that the Employees have no right of action, the EUA Statute does not apply to their claim for two reasons. First, the statute does not apply to Governor Inslee. As the Third Circuit has recognized, it "obligates *only* the Secretary of Health and Human Services to act, by establishing 'conditions designed to ensure' informed consent." *CHDI*, 93 F.4th at 76 (emphasis added). And, as the Sixth Circuit has recognized, the EUA Statute's language—"ensur[ing] that individuals to whom the product is administered are informed . . . of [their] option to accept or refuse" the vaccine—"addresses the interaction *between the medical provider* and the person receiving the vaccine." *Norris*, 73 F.4th at 438 (emphasis added).

Second, the Employees cannot plausibly allege they were not informed of the "option to accept or refuse administration of the product, [or] the consequences . . . of refusing administration of the product," as the EUA Statute requires, 21 U.S.C. 360bbb-3(e)(1)(A)(ii)(III), when they in fact *did* refuse the vaccine and admit the Proclamation advised them of the consequences for doing so. ER-13; *see also CHDI*, 93 F.4th at 76 (explaining that the plaintiffs were not deprived of the right "to accept or refuse" the vaccine when all but one plaintiff exercised their right to refuse and remain unvaccinated).

45 C.F.R. § 46: 45 CFR § 46 is an H.H.S. regulation that limits the use of federal funds for "research involving human subjects." 45 C.F.R. § 46.101. But 45 C.F.R. § 46 is not enforceable under § 1983 because "an agency regulation cannot create individual rights enforceable through § 1983." *Save Our Valley v. Sound Transit*, 335 F.3d 932, 936 (9th Cir. 2003); *see also Elansari v. Univ. of Penn.*, 779 F. App'x 1006, 1008–09 (3d Cir. 2019) (affirming holding that "[45 C.F.R] § 46.116 does not provide a private cause of action."); *see generally Alexander v. Sandoval*, 532 U.S. 275, 291 (2001) ("[I]t is most certainly incorrect to say that language in a regulation can conjure up a private cause of action that has not been authorized by Congress. Agencies may play the sorcerer's apprentice but not the sorcerer himself."). Regardless, the regulation does not apply because the Employees cannot allege they were involved in "research." *See infra* subsection VII.B.3.a.ii.

The Belmont Report: Neither a statute nor regulation, the Belmont Report is a mere "statement[] of principles" that applies to an "agreement to participate in research," ER-0466 (Compl. ¶ 31.A); *Kriley v. Nw. Mem'l Healthcare*, No. 22-1606, 2023 WL 371643, at *2 (7th Cir. 2023). It provides that "when a person participating in a study is capable of giving informed consent, the scientist conducting the experiment should not proceed without it." *Ernst v. City of Chicago*, 837 F.3d 788, 800 n.6 (7th Cir. 2016). The few courts to have addressed this obscure provision have concluded the Belmont Report does not create a private right of action. *Kriley*,

2023 WL 371643, at *2; *see also, e.g.*, *Curtis v. PeaceHealth*, No. 3:23-cv-05741-RJB, 2024 WL 248719, at *7 (W.D. Wash. Jan. 23, 2024) (addressing equivalent claim and holding that "Plaintiffs fail to show that any of the federal statutes, regulations, reports or international treaties they cite in their Amended Complaint [including the Belmont Report] apply and/or that they contain a private cause of action that is available"); *Conway v. A.I. DuPont Hosp. for Child.*, No. CIV.A. 04-4862, 2007 WL 560502, at *7 (E.D. Pa. Feb. 14, 2007) (holding that the Belmont report "provide[s] no private right of action," and noting that other "[c]ourts have held that there is no private right of action for violations of these declarations, codes, reports, or regulations."); *Washington Univ. v. Catalona*, 437 F. Supp. 2d 985, 1000 (E.D. Mo. 2006), *aff'd*, 490 F.3d 667 (8th Cir. 2007) (Plaintiffs have "no private cause of action to enforce the terms" of "an agreement with DHHS to be guided by the ethical principles in the Belmont Report").

The Employees' reliance on the Belmont Report also fails for the independent reasons that they cannot show that the Proclamation was for the purpose of research, or that the Belmont Report applies to Governor Inslee, who is not a "scientist conducting [an] experiment." *Ernst*, 837 F.3d at 800 n.6.

The "Federal Wide Assurance": the Employees contend that the Federal Wide Assurance is "an agreement by entities conducting business with HHS to comply with 45 C.F.R. 46 and the Belmont Report[.]" ER-0493 (Compl. ¶ 138). But

the Employees offer no explanation for how such an "agreement to comply with" these provisions can create a § 1983-enforceable right when the provisions themselves do not. Regardless, contrary to the Employees' bald assertion that "Governor Inslee had duties under . . . the state's FWA," Op. Br. at 32, their Complaint demonstrates that Governor Inslee was not a party or otherwise subject to this assurance, which the Employees allege applies to "*Institution[s]* . . . engaged in human subjects research." ER-0493 (Compl. ¶ 139).

The ICCPR: The ICCPR is an international treaty that applies to "medical or scientific experimentation." ER-0482 (Compl. ¶ 92). Like the other authorities on which the Employees rely, the ICCPR is not enforceable under § 1983 and does not independently create a private right of action. *Igartua De La Rosa v. United States*, 32 F.3d 8, 10 n.1 (1st Cir. 1994) (provisions of ICCPR "were not self-executing, . . . and could not therefore give rise to privately enforceable rights under United States law."); *Guaylupo-Moya v. Gonzales*, 423 F.3d 121, 137 (2d Cir. 2005) ("[T]he provisions of the ICCPR do not create a private right of action or separate form of relief enforceable in United States courts."); *Kriley*, 2023 WL 371643, at *2 (ICCPR "do[es] not create rights enforceable in federal courts"); *Kyler v. Montezuma Cnty.*, 203 F.3d 835 (10th Cir. 2000) (ICCPR "do[es] not, by [its] terms, confer rights upon individual citizens"). Further, the Employees cannot allege the required

"experimentation" under the ICCPR. The district court correctly dismissed the Employees' "investigational drug use" claim.

ii. The Proclamation is not "research" and the Employees have no right to refuse an EUA drug "without penalty."

Despite the Employees' assertion that they were "subjected to investigational drug use," they do not actually allege that any one of them received the vaccine. As the district court correctly held, "it is undisputed that Plaintiffs rejected the FDA-approved Pfizer vaccine, [and so] cannot claim that they were unlawfully 'subjected' to any investigational medical product or procedure." ER-0013. Instead, the Employees claim only that they were denied the opportunity to refuse an EUA drug "without penalty." *See, e.g.*, Op. Br. at 8, 18, 25; ER-0540–41 (Compl. ¶¶ 315-25). But the Employees have no such right.

The Employees appear to claim this purported right derives from the government's obligation to obtain "informed consent" in connection with "medical research" on "human subjects." Op. Br. at 14, 24 (citing 45 C.F.R. § 46.116 (governing research on human subjects), 10 U.S.C. § 980 (same), and the Belmont Report (same)). But the Opening Brief offers no explanation of how the Proclamation could constitute "research." And because "[j]udges are not like pigs, hunting for truffles buried in briefs," the Court can disregard the Employees' arguments as waived. *Greenwood v. F.A.A.*, 28 F.3d 971, 977 (9th Cir. 1994) (appellant waived argument that was not adequately briefed); *Smith v. Marsh*, 194

F.3d 1045, 1052 (9th Cir. 1999) ("[O]n appeal, arguments not raised by a party in its opening brief are deemed waived."); *Martinez-Serrano v. I.N.S.*, 94 F.3d 1256, 1259 (9th Cir. 1996) ("Issues raised in a brief that are not supported by argument are deemed abandoned," and "an issue referred to in the appellant's statement of the case but not discussed in the body of the opening brief is deemed waived.").

Moreover, the regulations cited in the Complaint confirm the Employees' argument fails on the merits. The Complaint claims the Proclamation falls within "45 C.F.R. 46.102(l)'s definition of research": "a systematic investigation, including research development, testing, and evaluation, designed to develop or contribute to generalizable knowledge." ER-0540, ER-0467. Specifically, the Employees assert the alleged "research" consists of alleged requirements that vaccine administrators report certain public health data, including: "[a]dverse events," "vaccination administration errors," "cases . . . that result in hospitalization or death after administration of COVID-19 vaccine," and other "Vaccine Administration Data." ER-0480–81 (Compl. ¶¶ 88–89).

But 45 C.F.R. § 102—the definition of "research" on which the Employees purport to rely—expressly forecloses this argument, providing that "[p]ublic health surveillance activities" are "deemed *not to be research*." 45 C.F.R. § 46.102(l)(2), (emphasis added). This exempt "public health surveillance" includes "the collection and testing of information . . . conducted, supported, requested, ordered, required, or

authorized by a public health authority" that is "necessary to allow a public health authority to identify, monitor, assess, or investigate potential public health signals, . . . or conditions of public health importance (including trends, signals, risk factors, patterns in diseases, or increases in injuries from using consumer products)." *Id*. That is precisely the type of reporting on which the Employees' attempt to rest their claim.

Because the Employees have not, and cannot, explain how the Proclamation could constitute "research," the Employees can identify no right to refuse the COVID-19 vaccine "without penalty." The Court should affirm dismissal of the Employees' "investigational drug use" claim.

iii. The Pfizer vaccine was not an "investigational drug."

The Employees' "investigational drug use" claim also fails because, as the district court correctly held, the COVID vaccine was not "investigational." Instead, the FDA-approved Pfizer vaccine, and the EUA version of that drug—that the Employees concede were available to them—were "identical in all but name." ER-0013.

"An 'investigational new drug' is 'a new drug or biological drug that is used in a clinical investigation,'" 21 C.F.R. § 312.3, and that has "not yet been approved or cleared by the FDA and the FDA has not found . . . to be safe and effective for their specific use," *see* FDA Expanded Access: Information for Patients,

https://www.fda.gov/news-events/expanded-access/expanded-access-information-patients#:~:text=Investigational (last visited on Aug. 8, 2024).

But the Complaint expressly acknowledges that the Employees could comply with the Proclamation by receiving "a two-dose series of . . . [the] Pfizer" vaccine. ER-0507 (Compl. ¶ 196A). And the Employees do not dispute that on August 23, 2021—before they were required to be vaccinated—the Pfizer vaccine received full FDA approval. *See* FDA, *FDA Approves First COVID-19 Vaccine* (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine ("Today, the U.S. Food and Drug Administration approved the first COVID-19 vaccine.").

Instead, the Employees rest their claim on technical legal distinctions in the *physical labels* assigned to FDA-approved ("Comirnaty") and EUA ("BioNTech") vaccines, contending that "Pfizer never manufactured the licensed version nor introduced it into general marketing at all times material" such that "Defendant-Appellees relied exclusively on . . . drugs that were *FDA-labeled* as investigational." Op. Br. at 18 (emphasis added). In the Employees' words, while "*the drugs were* . . . *the same* on paper as of August 23, 2021, . . . *the labels were not the same*, and the laws applicable to each label were not the same." Op. Br. at 39 (emphasis added).

This assertion, even if accepted, does nothing to support the Employees' claims. The documents attached to the Complaint confirm that Comirnaty and

BioNTech share "the same formulation . . . and . . . can be used interchangeably to provide the vaccination series without presenting any safety or effectiveness concerns." ER-0567 n.8. The Employees concede these drugs "share formulation" and "may be interchangeable." Op. Br. at 20; *see also Johnson v. Brown*, 567 F. Supp. 3d 1230, 1247 (D. Or. 2021) (FDA-approved and EUA Pfizer vaccines were "physically, chemically, and biologically identical"). And as stated in the Declaration of Peter Marks—on which the Employees purport to rely, Op. Br. at 14—"healthcare practitioners could provide the vaccination series to recipients using Pfizer-BioNTech, Comirnaty, or both . . . since the formulation was the same and both products are made by the same manufacturer under current good manufacturing practice requirements." ER-0399. As Dr. Marks explained, because BioNTech was "manufactured in compliance with the [Biologics License Applications]"—the mechanism by which "[v]accines are approved for marketing"—it is not "subject to the EUA requirements when used for the approved indication." SER-005, 009-10. For this reason, the FDA "exercis[ed] its enforcement discretion" *not* to enforce the "labelling requirements" the Employees cite. SER-008.

Moreover, the Employees fail to explain how any technical "legal distinctions" in the labels assigned to "physically, chemically, and biologically identical" drugs support their § 1983 claim. Op. Br. at 16–17, 21. The Employees

have no claim under the federal drug labelling laws—for "misbranding," Op. Br. at 16-17, or otherwise—and cannot explain how these purported labeling distinctions subjected them to "medical research" or "scientific experimentation" as they contend. ER-0526–27; ER-0540–41 (Compl. ¶¶ 276 n. 96, 318–25).

The Employees' reference to the reissuance of the BioNTech EUA after Comirnaty's approval, Op. Br. at 15, is also of no moment. As the FDA explained (in a document attached to the Complaint), reauthorization was necessary because there was still "a significant amount of Pfizer-BioNTech COVID-19 vaccine that was manufactured and labeled in accordance with this emergency use authorization" and insufficient branded Comirnaty product to vaccinate the population of persons over 16 years old. ER-0577. The Employees cite no statute or authority for their suggestion that this somehow "violated the EUA" or constituted "fraud," Op. Br. at 15, 16, and it does nothing to support their claim that the Proclamation constituted prohibited human "research."

The Employees offer no legal support for their effort to concoct a § 1983 claim from differences in the labels of these admittedly identical medical products. And their argument flies in the face of consistent authority upholding the legality of vaccine mandates that required use of the same products. *See, e.g.*, *Kheriaty*, 2022 WL 17175070, at *2; *CHDI*, 93 F.4th at 76; *Norris*, 73 F.4th at 438; *Lukaszczyk*, 47

F.4th at 603; *Clementine*, 74 F.4th at 90. The district court correctly dismissed the Employees' "investigational drug use" claim.

b. The district court correctly dismissed the Employees' equal protection claim.

The district court properly dismissed the Employees' equal protection claim because they "have not alleged that they are members of suspect class," and Governor Inslee "offered legitimate policy reasons for issuing Proclamation 21-14." ER-0015.

"The Equal Protection Clause of the Fourteenth Amendment commands that no state shall deny to any person within its jurisdiction the equal protection of the laws, which is essentially a direction that all persons similarly situated should be treated alike." *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 439 (1985) (cleaned up). To prevail on an equal protection claim, a plaintiff must "show that a class that is similarly situated has been treated disparately." *Boardman v. Inslee*, 978 F.3d 1092, 1117 (9th Cir. 2020) (internal quotation marks and citation omitted). Where no suspect class is implicated, a state action "need only rationally further a legitimate state purpose to be valid." *Minn. State Bd. for Cmty. Colls v. Knight*, 465 U.S. 271, 291 (1984) (cleaned up).

Here, the Employees fail to mention, let alone challenge, the district court's holding that they belong to no suspect class. *See* ER-0015. This failure waives any argument to the contrary, *Smith*, 194 F.3d at 1052; *Martinez-Serrano*, 94 F.3d at

1259. Accordingly, the Proclamation is subject only to rational basis review, which it easily passes. *Knight*, 465 U.S. at 291.

The rational basis test presumes a mandate's validity so long as it is "rationally related to a legitimate state interest." *City of Cleburne*, 473 U.S. at 440. "Governmental action is rationally related to a legitimate goal unless the action is clearly arbitrary and unreasonable, having no substantial relation to the public health, safety, morals, or general welfare." *Sylvia Landfield Tr. v. City of L.A.*, 729 F.3d 1189, 1193 (cleaned up). "Given the standard of review, it should come as no surprise that [courts] hardly ever strike[] down a policy as illegitimate under rational basis scrutiny." *Boardman*, 978 F.3d at 1118 (citation omitted).

This Court and other circuits have consistently upheld vaccine mandates under rational basis review. *See Kheriaty*, 2022 WL 17175070, at *2 (determining that the plaintiff's challenge to COVID-19 vaccine mandate failed under rational basis review); *CHDI*, 93 F.4th at 81 (concluding that the vaccine mandate survived rational basis review); *Norris*, 73 F.4th at 435 (6th Cir. 2023) ("Plaintiffs' substantive due process claim fails because MSU's vaccine policy satisfies rational basis scrutiny."); *Lukaszczyk*, 47 F.4th at 603 (stating that "plaintiffs have not met their burden under the rational basis standard to show that the challenged policies violate their substantive due process rights"); *Clementine*, 74 F.4th at 90 (determining that requiring individuals in indoor entertainment and recreational

settings to be vaccinated against COVID-19 survived rational basis review because it mitigated the risk of spreading COVID-19 and incentivized vaccination among the people most likely to be in a position to spread the virus.).

There is no question the Proclamation is valid under that standard. As the Supreme Court has recognized, "[s]temming the spread of COVID-19 is unquestionably a compelling interest." *Roman Catholic Diocese of Brooklyn v. Cuomo*, 592 U.S. 14, 18 (2020); *see also Pilz*, 2023 WL 8866565, at *2 (holding that Proclamation meets rational basis review "[b]ecause requiring vaccination of state agency and healthcare workers is rationally related to [the] goal" of stemming the spread of COVID-19); *Slidewaters LLC*, 4 F.4th at 758 ("There is a legitimate state interest in preventing the spread of COVID-19, a deadly contagious disease.").

The Employees concede that "reducing the spread of COVID-19 is a legitimate state interest," but argue that "violating known federal law, state agreements, and [the Employees]' constitutional rights" is not. Op. Br. at 43. This circular reasoning ignores that the rational basis test only arises where federal law and constitutional rights are alleged to have been violated. *See, e.g.*, *Kheriaty*, 2022 WL 17175070, at *1 (Plaintiff claimed COVID-19 vaccine requirement violated federal equal protection and due process rights); *Norris*, 73 F.4th at 433 (Plaintiffs alleged that "vaccine policy . . . violated [their] constitutional rights and that the . . . vaccine mandate was preempted by federal law."). Moreover, as the district court

correctly held, and as explained herein, Governor Inslee did not violate any federal laws, state agreements, or the Employees constitutional rights. The Employees' equal protection claim was properly dismissed.

c. The district court correctly dismissed the Employees' due process claim.

The district court properly dismissed the Employees' due process claim because the Employees identify neither a fundamental right that was violated nor any constitutionally required process that they were denied, and because Governor Inslee "had a rational basis for issuing the Proclamation." ER-0016–21.

The Due Process Clause of the Fourteenth Amendment provides that no state shall "deprive any person of life, liberty, or property, without due process of law," U.S. Const. amend. XIV, § 1, and has both substantive and procedural applications. But the scattered references to "due process" in the Employees' Opening Brief do not outline a viable claim, failing to even discuss the claim's elements or explain whether they are alleging a substantive or procedural violation. Op. Br. at 11, 26, 34–35, 46–48. The district court correctly held that the Employees have alleged neither.

i. The Employees fail to plead a substantive due process claim.

"Substantive due process protects individuals from arbitrary deprivation of their liberty by government." *Sylvia Landfield Tr.*, 729 F.3d at 1195. Only "the most egregious official conduct can be said to be arbitrary in the constitutional sense,"

County of Sacramento v. Lewis, 523 U.S. 833, 846 (1998) (cleaned up), and "the alleged deprivation must shock the conscience and offend the community's sense of fair play and decency," *Sylvia Landfield Tr.*, 729 F.3d at 1195 (cleaned up). "To establish a violation of substantive due process, a plaintiff must first show a deprivation of some fundamental right or liberty interest that is deeply rooted in this Nation's history and tradition." *Tutor-Saliba Corp. v. City of Hailey*, 452 F.3d 1055, 1061 (9th Cir. 2006) (cleaned up). The Employees cannot do so.

The district court correctly dismissed the Employees' substantive due process claim because "there is no fundamental right to continued employment in a particular job," and "employees may be lawfully terminated for refusing to vaccinate in accordance with the terms of Proclamation." ER-0017. The Employees do not dispute the district court's holding that they have no "fundamental right" to continued employment, and so waive any argument to the contrary. *Smith*, 194 F.3d at 1052; *Martinez-Serrano*, 94 F.3d at 1259.

Instead, the Employees claim a purported "right to refuse" the COVID vaccine without penalty, Op. Br. at 45, but "federal courts have uniformly held [that] there is no fundamental right to refuse vaccination." *CHDI*, 93 F.4th at 78. Indeed, beginning with the Supreme Court's 1905 decision in *Jacobson*, 197 U.S. 11, courts have consistently held there is no right to refuse a vaccine, *see, e.g.*, *Kheriaty*, 2022 WL 17175070, at *1; *CHDI*, 93 F.4th at 78; *Clark*, 2023 WL 2787325, at *6. And

numerous circuits have held there is no fundamental right to refuse the COVID vaccine specifically. *See*, *e.g.*, *CHDI*, 93 F.4th at 78–79 (finding no fundamental right to refuse the COVID-19 vaccine); *Norris*, 73 F.4th at 435 ("Plaintiffs' substantive due process claim fails because MSU's vaccine policy satisfies rational basis scrutiny."); *Klaasen v. Trustees of Indiana Univ.*, 7 F.4th 592, 593 (7th Cir. 2021) ("Given *Jacobson*, . . . there can't be a constitutional problem with vaccination against SARS-CoV-2."); *We the Patriots*, 17 F.4th at 293 (stating that "Plaintiffs provide no basis for concluding that the vaccination requirement here . . . violates a fundamental constitutional right.").

The Employees' attempt to distinguish "EUA drugs" from approved vaccines cannot salvage their claims. As the Third Circuit has held, the EUA Statute establishes "no unqualified right to decide whether to 'accept or refuse' an EUA product without consequence." *CHDI*, 93 F.4th at 76. To the contrary, "being advised of the consequences is precisely what [the statute] requires." *Id*. It provides only that the HHS Secretary must establish conditions to ensure drug recipients are advised of "*the option to accept or refuse* administration of the product, [*and] the consequences, if any, of refusing* administration of the product." 21 U.S.C. § 360bbb-3(e)(1)(A)(ii)(III) (emphasis added). Because the Employees concede not only that they were advised of this option, but that they accepted it, they can allege no violation of the EUA Statute. *See CHDI*, 93 F.4th at 76 (Plaintiffs could not allege a

violation of EUA statute where they "exercised their right to refuse and remain unvaccinated"; noting that that the "difficult" choice of whether to "get the vaccine, apply for an exemption, or pursue education elsewhere" was not a violation of due process).

The Employees' reference to *Health Freedom Defense Fund, Inc. v. Carvalho*, 104 F.4th 715 (9th Cir. 2024) (*HFDF*), Op. Br. at 42, does nothing to help their claim. In *HFDF*, the panel vacated the district court's order dismissing a case alleging that a California school district's COVID-19 vaccine mandate violated substantive due process and equal protection under the Fourteenth Amendment. The *HFDF* majority distinguished *Jacobson* on the grounds that the *HFDF* plaintiffs alleged that "the vaccine does not effectively prevent spread, but only mitigates symptoms for the recipient," which, if accepted as true, would bring the mandate outside of *Jacobson*'s "public health rationale." *Id.* at 724–25. Importantly, while the Court noted that it "need not" accept the plaintiffs allegations regarding the vaccine's ineffectiveness as true, it did so because the defendants failed to point to judicially noticeable evidence showing the vaccine did, in fact, reduce the spread of COVID-19. *Id*. at 725 (citing *Sprewell*, 266 F.3d at 988).

HDHF is inapplicable here for three reasons. First, the Employees' Complaint does *not* allege that the vaccine does not help prevent the spread of COVID-19. While the Employees made the assertion (without citation) in briefing that the "CDC

Director . . . admitted that the COVID-19 EUA/PREP Act investigational drugs did not prevent infection or transmission," ER-0221, that claim does not appear in the Complaint. Compare Op. Br. at 42 (citing the Employees' Opposition to Motion to Dismiss) *with* ER-455–88 (Complaint).

Second, this counterfactual assertion is directly contrary to the record in this case, which confirms that the vaccine *does* reduce the risk of transmission of COVID-19. Specifically, the Complaint's attachments show that the FDA fully approved the Pfizer vaccine "for active immunization *to prevent* COVID-19.'" ER-567 (emphasis added), and had previously approved the identical EUA version "for *the prevention* of COVID-19 in individuals 12 through 15 years of age, as well as for individuals 16 years of age," ER-567 (emphasis added); *see also* ER-577 ("This product . . . has been authorized for emergency use by FDA, under an EUA to prevent Coronavirus Disease 2019 (COVID-19) for use in individuals 12 years of age and older."). And data from the relevant period—from sources cited and incorporated into the Employees' Complaint, ER-0479—showed that unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[15]

[15] CDC, *Morbidity and Mortality Weekly Report* (MMWR) (Sept. 17, 2021).

Third, *HDHF* did not involve any defendants sued in their individual capacity, and so did not implicate the presumption of qualified immunity. Unlike the Employees in this case, therefore, the *HDHF* plaintiffs did not need to establish that the Proclamation was invalid "beyond debate" at the time of its enactment—a burden the Employees cannot meet. *Kotek*, 2024 WL 747022, at *3; *see also infra* subsection VII.B.2.

The Employees' broad references to the PREP Act, Op. Br. at 46, are also unavailing. As discussed above, far from giving the Employees an enforceable right, that statute gives Governor Inslee *immunity* from the Employees' claims. *See Hampton*, 83 F.4th at 761; *Maney*, 91 F.4th at 1303.

Implicating no fundamental right, vaccine mandates are considered under rational basis review. *See City of Cleburne*, 473 U.S. at 440. "[T]he rational basis test is identical" under the Due Process and Equal Protection clause. *Munoz v. Sullivan*, 930 F.2d 1400, 1404 (9th Cir. 1991). As discussed above, courts have consistently upheld vaccine mandates under rational basis review, and the Employees cite no applicable authority to the contrary. *See supra* subsection VII.B.3.b. The Court should affirm dismissal of the Employees' substantive due process claim.

ii. The Employees fail to plead a procedural due process claim.

The Employees failed to allege facts sufficient to state a plausible due process claim. *See Iqbal*, 556 U.S. at 678 (to avoid dismissal, "a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face" (citation and internal quotation marks omitted)). A procedural due process claim requires: (1) a constitutionally protected liberty or property interest; (2) a deprivation of that interest by the government; and (3) a lack of adequate process. *Shanks v. Dressel*, 540 F.3d 1082, 1090 (9th Cir. 2008). Plaintiff's claim fails for three reasons, two of which the district court relied on in correctly dismissing this claim.

The Employees do not dispute the two grounds on which the district court dismissed this claim. First, the district court held that Governor Inslee "was not required to provide Plaintiffs 'with more process beyond what was provided by enacting the Proclamation.'" ER-0018. The Employees neither dispute this conclusion, nor identify any additional "process" that should have been provided. They, accordingly, have waived any argument to the contrary. *Smith*, 194 F.3d at 1052; *Martinez-Serrano*, 94 F.3d at 1259.

Indeed, the Proclamation "created a process by which employees could apply for exemptions and accommodations, and essentially present [their] side of the story' to avoid termination," which is "all that [the law] requires." *Pilz v. Inslee*, 2022 WL

1719172, at *7 (W.D. Wash. May 27, 2022), *aff'd*, 2023 WL 8866565 (9th Cir. Dec. 22, 2023) (cleaned up); *see also* ER-0583 (requiring covered employers to "consider[] and decid[e]" requests for accommodation based on claimed medical conditions or religious beliefs consistent with state and federal antidiscrimination statutes). Courts have consistently held that this process is sufficient. *See, e.g.*, *Pilz*, 2022 WL 1719172, at *7; *Bacon v. Woodward*, No. 22-35611, 2024 WL 3041850, at *2 (9th Cir. June 18, 2024) (rejecting procedural due process challenge to Proclamation because "no procedural due process is required beyond the proper promulgation of the new substantive rule"); *Kane v. De Blasio*, 19 F.4th 152, 167 n. 14 (2d Cir. 2021) (rejecting procedural due process claim based on vaccine mandate where requests for exemption and accommodation "will be governed by Title VII and analogous state and city law"); *Lukaszczyk*, 47 F.4th at 605 (dismissing procedural due process claim based on vaccine mandate where plaintiffs "have not articulated what procedural protections they should have been afforded."); *Broecker v. New York City Dep't of Educ.*, No. 23-655, 2023 WL 8888588, at *2 (2d Cir. Dec. 26, 2023) (vaccine mandate satisfied procedural due process where "plaintiffs received 'ample notice of (1) the Vaccination Mandate, (2) their ability to seek religious and medical exemptions and appeals, (3) their placement on LWOP if they continued to be noncompliant with the terms of the Vaccination Mandate, and (4) their options and opportunity to respond.'").

Second, the district court held that the Employees "have not identified a constitutionally protected liberty or property interest." ER-0018. The Employees' only conceivable response to this determination is their passing assertion that "[t]he right to accept under the EUA Statute . . . and to refuse without outside pressure or penalty is a property interest held by" the Employees. Op. Br. at 14. But, as discussed above, the Employees have no such right. *See supra* subsection VII.B.3.a.ii. Even if they did, the Employees cite no authority for this proposition that this is a "property interest" or that it is "Constitutionally protected." It is not. The Court should, therefore, affirm dismissal on this independent ground.

Finally, the Court can and should affirm dismissal because as a "law[] of general applicability affecting a broad geographic area," the Proclamation does not implicate procedural due process concerns. *Hotel & Motel Ass'n of Oakland v. City of Oakland*, 344 F.3d 959, 968–70 (9th Cir. 2003); *see also Halverson v. Skagit Cnty.*, 42 F.3d 1257, 1260 (9th Cir. 1994) (In cases involving laws of general applicability, due process is satisfied when the governmental body "performs its responsibilities in the manner normal manner prescribed by law."). As this Court has held, "[t]he Proclamation is . . . generally applicable, as it applies to all relevant employees unless they can show that they are legally entitled to an exemption." *Pilz*, 2023 WL 8866565, at *2. The Court should affirm dismissal with prejudice of the Employees procedural due process claim.

d. The district court correctly dismissed the Employees' Spending Clause claim.

The district court properly dismissed the Employees' Spending Clause claim because it does not apply to Governor Inslee. Moreover, the Employees failed to allege facts sufficient to state a plausible spending clause claim. *See Ashcroft*, 556 U.S. at 678. *See also* ER-0020.

"The Spending Clause provides that Congress has the power 'to pay the Debts and provide for the common Defence and general Welfare of the United States," and "gives Congress the ability 'to grant federal funds to the States, and . . . condition such a grant upon the States' 'taking certain actions that Congress could not require them to take.'" *City of Los Angeles v. Barr*, 929 F.3d 1163, 1174 (9th Cir. 2019) (quoting U.S. Const. Art. I, § 8, cl. 1). In the proceeding below, the Employees conceded that "the Spending Clause itself does not create a cause of action," but argued that "conferred rights in any spending legislation do." ER-0224. Their Complaint further elaborated that "*spending legislation* g[ives] rise to rights enforceable under § 1983 *only* . . . where *statutory provisions explicitly conferred specific monetary entitlements* upon the plaintiffs." ER-0544 (Compl. ¶ 341) (emphasis added; quoting *Gonzaga Univ. v. Doe*, 536 U.S. 273 (2002)).

The district court properly dismissed this claim for two reasons that the Employees fail to address. First, while "[t]he Spending Clause may attach limits on the federal government's ability to condition use of federal funds, . . . Plaintiffs

identify no authority for the proposition that it likewise limits state governors or private employers." ER-20. Second, the district court held that "[t]he only arguable spending legislation Plaintiffs discussed—10 U.S.C. § 980—. . . by its plain terms does not apply to the Governor" because it limits the use of "[f]unds appropriated to the *Department of Defense*." *Id* (emphasis in original).

The Employees' failure to dispute the district court's conclusion that neither the Spending Clause, nor the "spending legislation" they purport to rely on apply to Governor Inslee abandons any argument to the contrary. *Smith*, 194 F.3d at 1052; *Martinez-Serrano*, 94 F.3d at 1259. The Court should, therefore, affirm the dismissal of this claim.

The Court should separately affirm because, as the district court also held, 10 U.S.C. § 980 does not "giv[e] rise to enforceable rights." ER-20. The Supreme Court "has recognized that the typical remedy for noncompliance with a federal statute enacted pursuant to the Spending Clause is not a private cause of action for noncompliance but rather termination of funds to the State." *Talevski*, 599 U.S. at 183. Accordingly, the Supreme Court has consistently "rejected attempts to infer enforceable rights from Spending Clause statutes whose language did not unambiguously confer such a right upon the Act's beneficiaries." *Gonzaga*, 536 U.S. at 274. Instead, the "test is satisfied where the provision in question is 'phrased in terms of the persons benefited' and contains 'rights-creating,' individual-centric

language with an 'unmistakable focus on the benefited class.'" *Talevski*, 599 U.S. at 183 (cleaned up; quoting *Gonzaga*, 536 U.S. at 284, 287).

Taken together, *Talevski* and *Gonzaga* clarify when statutes satisfy this standard, and confirm that 10 U.S.C. § 980 does not. In *Talevski*, the Federal Nursing Home Reform Act established a cause of action by expressly recognizing nursing home residents' "right to be free from" certain physical or chemical restraints. *Id*. at 184 (quoting 42 U.S.C. § 1396r(c)(1)(A)(ii)).

In *Gonzaga* by contrast, the Family Educational Rights Privacy Act of 1974 (FERPA) did *not* satisfy this standard because it contained no such "rights-creating" language, providing only that "[n]o funds shall be made available . . . to any educational agency or institution" that permits the release of educational records without parental consent. 536 U.S. at 279, 287 (citing 20 U.S.C. § 1232g(b)(1)).10 U.S.C. § 980 is directly analogous to FERPA, providing only that "[f]unds appropriated to the Department of Defense may not be used for research involving a human being as an experimental subject unless" certain conditions are met. Because this statute "entirely lack[s] the sort of individually focused rights-creating language that is critical" to this analysis, it provides no enforceable right. *Gonzaga*, 536 U.S. at 274.

Although the Employees vaguely assert that the district court "erred . . . by not acknowledging [the Employees]' claims relating to the *Talevski* ruling," Op. Br.

at 45, they provide no explanation of what that "claim" is or how it supports their position here. As discussed above, *Talevski* only confirms their claim must be dismissed. Moreover, the Employees cannot incorporate by reference arguments from their briefs below. *Foley v. Graham*, No. 21-15024, 2022 WL 1714293, at *1 (9th Cir. May 27, 2022). And their failure to make their argument "specifically and distinctly in a party's opening brief," forfeits it. *Greenwood,* 28 F.3d at 977.

The Employees similarly argue without explanation that the district court failed to acknowledge their claims regarding "the Provider Agreement and disputing the FDA's assertion that the drugs were investigational and not approved." Op. Br. at 45. Again, the Employees forfeit any such arguments by failing to explain what these arguments are or how they are relevant. *Greenwood*, 28 F.3d at 977; *Foley*, 2022 WL 1714293, at *1.[16]

Moreover, the Employees' obscure references to the Provider Agreement cannot salvage their Spending Clause claim. The Employees argued below that "Governor Inslee agreed to the terms of the Provider Agreement and the EUA statute relying on DoD-funded products under research conditions requiring him to 'ensure' [the Employees] gave their informed consent." ER-0224. But this argument fails

[16] While the Employees also complain about the District Court's holding that they "refused vaccination and thereby failed to meet the requirements to maintain their employment," Op. Br. at 44, that relates to their due process claim, not their Spending Clause claim and so is irrelevant here. ER-0016.

because: (1) the "Provider Agreement" is not "spending legislation"; (2) the Complaint shows that Governor Inslee was *not* a party to that Agreement, which was a contract between the CDC and specific healthcare providers, ER-0559; and (3) the Provider Agreement is irrelevant because, as the district court held, that "Agreement is concerned with vaccine administration and, by all counts, Plaintiffs declined to receive a COVID-19 vaccination," ER-0050.[17]

Even if the Employees could somehow overcome these fatal deficiencies, the Court should affirm dismissal of the Spending Clause claim for the independent reason that the Employees fail to adequately identify any "specific monetary entitlement." ER-0544 (Compl. ¶ 341); *Gonzaga*, 536 U.S. at 274. The Employees have made three attempts to do so, all of which fail:

- The Complaint alleges that "the 'specific monetary entitlement' [at issue here] . . . is that the EUA investigational drugs . . . are free of charge." ER-0545 (Compl. ¶ 344). But the Employees cannot claim the federal government improperly conditioned their entitlement to the vaccine on the requirement that they obtain that same vaccine.

[17] The Complaint also references purported "rights" under the EUA Statute, 45 C.F.R. § 46.122, and the Fourteenth Amendment, ER-0544, 0547 (Compl. ¶¶ 340, 360). But none of these is "spending legislation" subject the Spending Clause, none gives the Employees any viable cause of action, and none is identified in the Employees' Opening Brief as a viable basis for the Spending Clause claim.

- The Complaint alleges that the "Provider Agreement" created a monetary entitlement to "seek out a participating COVID-19 Program healthcare professional, obtain medical counseling, ask questions, and read literature," and "choose not to participate . . . [without] incur[ing] a fee[.]" ER-547 (Compl. ¶ 356). But the Employees do not contend either that they were denied the opportunity for "counseling" or charged any "fee" that would make this purported entitlement relevant to their claims.
- The Employees suggest that their claim rests on the purported denial of their ability to "us[e] their state-issued licenses." Op. Br. at 44. But the Employees did not make this argument below, and so cannot make it here. *Brown v. Wells Fargo Bank*, N.A., 810 F. App'x 602, 602 (9th Cir. 2020). And they make no attempt to explain how these licenses are "monetary entitlements" or relate to "spending legislation."

The Court should affirm dismissal of the Employees' Spending Clause claim.

e. The district court correctly dismissed the Employees' "unconstitutional conditions" claim.

The district court correctly dismissed the Employees' "unconstitutional conditions doctrine" claim because the Employees failed to allege they were deprived of any "governmental benefit"—a required element of the claim. ER-0021. The Court should affirm.

The unconstitutional conditions doctrine "vindicates the Constitution's enumerated rights by preventing the government from coercing people into giving them up." *Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. 595, 595–96 (2013). But the doctrine does not apply where there is no government benefit at issue. *See Ballinger v. City of Oakland*, 24 F.4th 1287, 1299–1300 (9th Cir. 2022) ("[T]he Ordinance does not conditionally grant or regulate the grant of a government benefit, such as a permit, and therefore does not fall under the unconstitutional-conditions umbrella."). And where a "[p]laintiff . . . is an at-will employee, no government benefit [is] denied" by their termination. *Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d 553, 566 (W.D. Va. 2022). The Employees' claim fails for two reasons.

First, the Employees concede they were at-will employees of Shriners, a private employer. *See* Op. Br. at 45; *see also* ER-0497–98, ER-0501, ER-0539, ER-0550 (Compl. ¶¶ 161, 171, 314, 372) (seeking to set aside "the State's at-will employment doctrine" and "at-will employment law"). Accordingly, the Proclamation "does not coerce Plaintiffs into waiving their constitutional rights . . . in order to receive a governmental benefit such as a tax exemption, medical treatment, or some sort of governmental funding," but rather "the 'benefit' at issue here is Plaintiffs' employment . . . , to which they are not constitutionally entitled." *Norris v. Stanley*, No. 1:21-cv-756, 2022 WL 247507, at *4 (W.D. Mich. Jan. 21,

2022), *aff'd*, 73 F.4th 431 (6th Cir. 2023); *see also Strolberg v. U.S. Marshals Serv.*, 350 F. App'x 113, 114 (9th Cir. 2009) (there is no constitutionally protected property interest in continued employment when an employee serves at-will).

The Employees do not dispute that their at-will employment is not a "government benefit." Instead, they respond with the false assertion—unsupported by any legal citation—that the "at-will employment doctrine was expressly preempted by the PREP Act . . . because it conflicts with the voluntary nature of a PREP Act program." Op. Br. at 45. While the Employees offer no explanation or legal authority to support their preemption claim, their Complaint identified the "expressly crafted" preemption language in 42 U.S.C. § 247d-6d(b)(8). ER-0495–96 ¶ 153. That provision, however, states only that "no State . . . may establish . . . any provision of law or legal requirement that . . . is different from, or is in conflict with, any requirement applicable under *this section*." 42 U.S.C. § 247d-6d(b)(8) (emphasis added). And the relevant statutory "section"—42 U.S.C. § 247d-6d—only permits the authorization, and creates immunity for the use of, "covered countermeasures." Rather than establishing a cause of action against state actors like Governor Inslee, it precludes the state from establishing a cause of action against others. *See Hudak v. Elmcroft of Sagamore Hills*, 58 F.4th 845, 853 (6th Cir. 2023) (stating that the "immunity provision reflects 'an ordinary rule of preemption, a defense to liability under state law . . .[i]t does not create a federal cause of action

that completely preempts covered state-law claims."). This provision is not only inapplicable here, but demonstrates "Congress's lack of interest in more broadly limiting state power" in this area. *United States v. 4,432 Mastercases of Cigarettes, More or Less*, 448 F.3d 1168, 1190 (9th Cir. 2006). The PREP Act, therefore, supplies no basis for preemption of the "at-will employment doctrine."

The Employees further contend that the "at-will employment doctrine was expressly preempted by the . . . EUA Statute because it conflicts with . . .an individual's option to accept or refuse without penalty or pressure." Op. Br. at 45. But as explained above, this statute does not apply to Governor Inslee, and the Employees have no right to "refuse without penalty or pressure." *See supra* subsections VII.B.3.a.ii–iii. This Court should, therefore, affirm the district court's dismissal of the Employees' unconstitutional conditions doctrine claim.

f. The district court correctly dismissed the Employees' PREP Act claim.

The district court properly dismissed the Employees' PREP Act claim for failure to satisfy any element or precondition of that claim. ER-0021–23. The Court should affirm.

As explained above, the PREP Act creates immunity for all claims of loss causally connected to the administration or use of covered countermeasures. *Hampton*, 83 F.4th at 761–62. "[T]he sole exception to the [PREP Act's] immunity from suit and liability . . . [is] an exclusive Federal cause of action against a covered

person for death or serious physical injury proximately caused by willful misconduct," which must "be filed and maintained only in the United States District Court for the District of Columbia," and must be accompanied by a physician's affidavit and certified medical records documenting the alleged injury. 42 U.S.C. § 247d-6d(d)(1), (e)(1), (e)(4). But the Employees cannot come within this exception because: (1) they did not allege they suffered "death or serious physical injury," 42 U.S.C. § 247d-6d(d)(1); (2) they cannot allege Governor Inslee engaged in "willful misconduct"—defined as "an act or omission that is taken . . . (i) intentionally to achieve a wrongful purpose; (ii) knowingly without legal or factual justification; *and* (iii) in disregard of a known or obvious risk that is so great as to make it highly probably that the harm will outweigh the benefit," 42 U.S.C. § 247d-6d(c)(1)(A) (emphasis added); (3) they have not filed suit in the U.S. district court for the District of Columbia, which is the exclusive venue for such a claim, 42 U.S.C. § 247d-6d(e)(1); and (4) they have not and cannot provide the documentation of physical injury or death that must accompany such a claim, 42 U.S.C. § 247d-6d(e)(4).

Even putting aside these insurmountable hurdles, the Employees' claim fails because they have not exhausted their administrative remedies. Before bringing the limited "exclusive claim" available under the PREP Act, the Employees had to first seek compensation from the "Covered Countermeasure Process Fund" and show that either "amounts have not by law been provided for the Fund" or "the Secretary [has]

fail[ed] to make a final determination on a request for benefits or compensation filed" within a certain period. 42 U.S.C § 247d-6e(d)(1). They did not do so, and their claim fails.

The PREP Act establishes no viable claim here, and in any event, imposes exhaustion requirements that the Employees did not satisfy. This Court should affirm the district court's dismissal with prejudice of the Employees' PREP Act claim.

C. The Employees Abandon Their Remaining Claims

In their opening brief, the Employees fail to address or dispute the district court's dismissal of their claims for: (1) Breach of Contract; (2) unspecified "Employment Torts"; (3) Outrage; and (4) Implied Right of Action under the EUA Statute. Accordingly, any argument that the district court erred in dismissing those claims is waived. *See Ridgeway v. Walmart Inc,* 946 F.3d 1066, 1076 (9th Cir. 2020). Because the Employees abandon any argument in support of these claims, the Court should affirm dismissal of these claims. *See* ER-0552–57 (Compl. ¶¶ 385–416).

1. The district court correctly dismissed the Employees' breach of contract claim

The Employees alleged that the Proclamation "deprived [them] of the benefits intended to be conferred" by the Provider Agreement." ER-0553 (Compl. ¶ 388). But the district court correctly held that "The Provider Agreement is concerned with vaccine administration and, by all counts, Plaintiffs declined to receive a COVID-19 vaccination." ER-0023. Accordingly, "even if the Court were to accept that

recipients of COVID-19 vaccinations were the intended third-party beneficiaries who the parties contracted to protect, that would have no bearing on Plaintiffs' claims of unlawful termination because Plaintiffs refused vaccination." ER-0024.

The district court further concluded that the Employees were *not* third-party beneficiaries of the Provider Agreement because "[at] best, any benefit to Plaintiffs resulting from this agreement was purely indirect or incidental." ER-0024.

The Employees do not dispute either of these holdings. The Court should, therefore, affirm the dismissal of this claim. *Kelly v. Swarthout*, 599 F. App'x 267, 268 (9th Cir. 2015).

The Employees' sole challenge is to the district court's separate conclusion that "the alleged breach of contract that Plaintiffs complain of did not in fact occur because an FDA-authorized vaccine . . . was available to Plaintiffs," ER-0024, Op. Br. at 19–20. However, because the district court had already concluded that the Provider Agreement was inapplicable and unenforceable by the Employees—holdings the Employees have *not* addressed—the Employees' argument cannot warrant reversal. Regardless, as discussed above, the Court's conclusion is accurate. *See supra* subsection VII.B.3.a.iii.

The Court should also affirm the dismissal of this claim for the independent reason that Governor Inslee was not a party to the Provider Agreement, ER-0510 (Compl. ¶ 210), ER-559–65 (Compl. Ex. A), and so could not have breached its

provisions. *See EEOC v. Waffle House, Inc.*, 534 U.S. 279, 294 (2002) ("It goes without saying that a contract cannot bind a nonparty."); *see also* Op. Br. at 22 (stating that the Provider Agreement required *Shriners* to do certain things) (emphasis added); *id*. at 41 (Provider Agreement required "the 'Organization' to comply with the EUA Statute").

2. The district court correctly dismissed the Employees "employment torts" claim

The district court correctly dismissed the Employees' claim for unspecified "employment torts." The Employees' failure to address this holding warrants affirmance. Indeed, the Employees also "d[id] not address th[is] claim" in the proceeding below, ER-0024, and so waived any argument in support of this claim on appeal. *Brown*, 810 F. App'x at 602. The Court should affirm.

3. The district court correctly dismissed the Employees' outrage claim

The Employees fail to address the dismissal of their Outrage claim in this proceeding, and failed to defend it below in response to Governor Inslee's Motion to Dismiss. ER-0024. The Court should affirm.

4. The Employees do not dispute the district court's dismissal of their implied right of action claim

The Employees fail to dispute the district court's dismissal of their implied right of action claim, ER-0023, and so waive any argument to the contrary. *Smith*, 194 F.3d at 1052; *Martinez-Serrano*, 94 F.3d at 1259. This Court should affirm.

D. The District Court Did Not Abuse Its Discretion in Denying Leave to Amend

The district court correctly dismissed the Employees' claims with prejudice. Denial of leave to amend is reviewed for abuse of discretion. *Nat'l Audubon Soc'y*, 307 F.3d at 853. And leave to amend is appropriately denied where "amendment would futile." *Ctr. for Biological Diversity v. United States Forest Serv.*, 80 F.4th 943, 956 (9th Cir. 2023). Here, the Employees merely restate their assertion that the district court failed to properly recognize "the Pfizer-BioNTech COVID-19 Vaccine drug classification." Op. Br. at 47. But, again, this only confirms Governor Inslee is entitled to immunity. *See supra* subsections VII.B.2, 3.a. And the Employees identify no additional allegations that could overcome Governor Inslee's presumption of immunity, or satisfy the elements of any of their claims. The district court did not abuse its discretion by denying leave to amend.

VIII. CONCLUSION

Governor Inslee respectfully requests that the Court affirm the district court.

RESPECTFULLY SUBMITTED this 14th day of August, 2024.

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CERTIFICATE OF SERVICE

I, Ian D. Rogers, hereby certify that I electronically filed the foregoing Defendant-Appellee Governor Jay Inslee's Answering Brief with the Clerk of the Court for the United States Court of Appeals for the Ninth Circuit using the Appellate Electronic Filing system on August 14, 2024.

I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the appellate CM/ECF system.

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UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

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9th Cir. Case Number(s) 24-1949

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Curtis et al. v. Inslee et al., Case No. 24-1869, D.C. No. 3:23-cv-05741-RJB

(W.D. Wash.) is an appeal from the United States District Court for the Western District of Washington's order granting dismissal of the plaintiffs' claims against Governor Inslee and the PeaceHealth defendants.

Signature *s/ Ian D. Rogers* **Date** August 14, 2024
*(use "*s/[typed name]*" to sign electronically-filed documents)*

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

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